

Islamic Shari'a and its Sources

Islamic Shari'a is the moral and legal framework derived from the teachings of Islam that governs all aspects of a Muslim's life. It covers religious rituals, family life, business, crime, governance etc. Shari'a is based on a combination of divine guidance from Islam's sacred texts and the interpretations of scholars.

Sources of Shari'a

Shari'a is derived from four primary sources, which are:

1. **The Qur'an (Primary source):** The Qur'an is the holy book of Islam and the direct word of Allah, revealed to Prophet Muhammad. It provides broad principles and directives for behavior, law, ethics etc.

Example: The Qur'an commands Muslims to pray five times a day and to give charity (Zakat). It also provides specific rules, such as prohibiting alcohol and gambling.

1. Order of Prayer and Zakat:

Surah Al-Baqarah (2:43):

"And establish prayer and give zakat and bow with those who bow [in worship and obedience]."

2. Prohibition of Interest (Usury/Riba):

Surah Al-Baqarah (2:278-279):

"O you who have believed, fear Allah and give up what remains [due to you] of interest, if you should be believers. And if you do not, then be informed of a war [against you] from Allah and His Messenger. But if you repent, you may have your principal – [thus] you do no wrong, nor are you wronged."

3. Prohibition of Gambling and Alcohol:

Surah Al-Ma'idah (5:90):

"O you who have believed, indeed, intoxicants, gambling, [sacrificing on] stone alters [to other than Allah], and divining arrows are but defilement from the work of Satan, so avoid it that you may be successful."

4. Prohibition of Pork:

Surah Al-Baqarah (2:173): **"He has only forbidden to you dead animals, blood, the flesh of swine, and that which has been dedicated to other than Allah..."**

5. Prohibition of Murder: The Qur'an strongly condemns murder, emphasizing the sanctity of human life.

Surah Al-Isra (17:33): **"And do not kill the soul which Allah has forbidden, except by right. And whoever is killed unjustly, We have given his heir authority..."**

6. Prohibition of False Witness and Slander: False testimony and slander are prohibited in the Qur'an, as they harm individuals and disrupt social harmony.

Surah An-Nur (24:23): **"Indeed, those who falsely accuse chaste women, unaware [of what is happening], are cursed in this world and the Hereafter; and they will have a great punishment."**

The Qur'an provides clear guidance on ethical business conduct, emphasizing fairness, honesty, and justice. Several prohibitions in business dealings are outlined to prevent exploitation and corruption. Here are some examples:

7. Prohibition of Fraud and Cheating: The Qur'an prohibits deceitful practices in business, such as giving less than what is due or tampering with measures and weights.

Surah Al-Mutaffifin (83:1-3): **"Woe to those who give less [than due], who, when they take a measure from people, take in full. But if they give by measure or by weight to them, they cause loss."**

8. Prohibition of Bribery: Bribery is strictly forbidden as it leads to corruption, injustice, and the unfair treatment of others.

Surah Al-Baqarah (2:188): **"And do not consume one another's wealth unjustly or send it [in bribery] to the rulers in order that [they might aid] you [to] consume a portion of the wealth of the people in sin, while you know [it is unlawful]."**

9. Prohibition of Hoarding and Price Manipulation: The Qur'an discourages the hoarding of goods to manipulate prices, as it causes harm to others, especially the needy.

Surah At-Tawbah (9:34): **"...And those who hoard gold and silver and spend it not in the way of Allah, give them tidings of a painful punishment."**

10. Prohibition of Exploitation and Unjust Gains: Islam prohibits businesses from exploiting others for personal gain, ensuring transactions are based on mutual consent and fairness.

Surah An-Nisa (4:29): **"O you who have believed, do not consume one another's wealth unjustly or through falsehood, but only [in lawful] business by mutual consent..."**

2. Sunnah (Actions and sayings of Prophet Muhammad)

The Sunnah refers to the practices, sayings, and approvals of Prophet Muhammad. It serves as a practical example of how the teachings of the Qur'an should be applied in daily life.

Example: While the Qur'an instructs Muslims to perform the daily prayers, the Sunnah explains how to perform these prayers, including the number of units (Rak'ahs) in each prayer.

The Sunnah (the actions, sayings, and approvals of Prophet Muhammad) complements the Qur'an by providing practical examples and detailed explanations of Islamic teachings. There are several practices in the Sunnah that are not explicitly detailed in the Qur'an but play a significant role in Islamic life. Here are a few examples:

1. Details of Daily Prayers (Salah)

The Qur'an commands Muslims to establish prayer, but it does not provide the specific details of how to pray. The Sunnah elaborates on the number of prayers, the units (rak'ahs) in each prayer, and the exact postures and recitations.

Example: The Prophet Muhammad taught that the Fajr prayer has two rak'ahs, the Dhuhr and Asr prayers have four rak'ahs, the Maghrib prayer has three rak'ahs, and the Isha prayer has four rak'ahs.

Reference: "Pray as you have seen me pray." (Sahih al-Bukhari)

2. Fasting on the Day of 'Arafah and Ashura

While fasting during the month of Ramadan is prescribed in the Qur'an, the Prophet Muhammad recommended fasting on specific days like the Day of 'Arafah (for those not on pilgrimage) and the Day of Ashura for additional spiritual benefits.

Example: The Prophet said about fasting on the Day of 'Arafah: **"It expiates the sins of the previous year and the coming year." (Sahih Muslim)** About fasting on the Day of Ashura: **"It expiates the sins of the previous year." (Sahih Muslim)**

3. Zakat al-Fitr

The Prophet prescribed Zakat al-Fitr as an obligatory charity given in food (like dates, barley, or wheat) to purify the fasting person and help those in need during Eid al-Fitr. (Sahih al-Bukhari)

4. Prohibition of Silk and Gold for Men

While the Qur'an does not explicitly prohibit wearing silk and gold for men, the Sunnah does. The Prophet Muhammad prohibited men from wearing silk and gold, as these are seen as adornments reserved for women. The Prophet said, **"Gold and silk have been permitted for the females of my Ummah, and forbidden for the males."** (Sunan an-Nasa'i)

5. Greeting with "As-Salamu Alaikum"

: The Qur'an encourages believers to greet one another with peace, but the Sunnah prescribes the specific greeting of "As-Salamu Alaikum" (Peace be upon you) and the response "Wa Alaikum As-Salam" (And upon you be peace).

The Prophet said, **"You will not enter Paradise until you believe, and you will not believe until you love one another. Shall I show you something that, if you did, you would love one another? Spread peace (As-Salam) among you."** (Sahih Muslim)

6. Punishment for Theft and Adultery

The Qur'an mentions punishments for certain crimes like theft and adultery but does not always specify the implementation of these punishments in detail. The Sunnah provides the practical method of executing these laws. In the case of theft, the Prophet Muhammad prescribed cutting off the hand of the thief (with specific rules and exceptions). (Sahih al-Bukhari) Similarly, for adultery, the punishment of stoning for married individuals was practiced based on the Prophet's directives.

7. Use of Siwak (Tooth-stick)

The Qur'an does not mention the specific use of the siwak for oral hygiene. However, the Sunnah of the Prophet emphasizes the frequent use of the siwak, especially before prayer, to maintain cleanliness.

The Prophet said, **"Were it not that I would be overburdening my Ummah, I would have ordered them to use the siwak before every prayer."** (Sahih al-Bukhari)

3. Ijma' (Consensus of Islamic scholars)

Ijma' is the consensus or agreement among Islamic scholars on certain issues not explicitly addressed in the Qur'an or Sunnah. It helps provide rulings for new issues as societies evolve.

Example:

1. The Compilation of the Qur'an: After the death of Prophet Muhammad, the Qur'an was preserved in written form on various materials but was not compiled into a single book. Following the Battle of Yamama, where many Qur'an reciters were killed, Caliph Abu Bakr, upon the suggestion of Umar ibn al-Khattab, initiated the compilation of the Qur'an into one book to preserve it. This decision was agreed upon by the companions (Sahaba) and is an example of Ijma. The consensus among the companions of the Prophet to compile the Qur'an into one official Mushaf (book) to ensure its preservation.

2. Taraweeh Prayer in Congregation

Description: During the lifetime of Prophet Muhammad, the Taraweeh (night prayers in Ramadan) were prayed individually or in small groups. However, during the caliphate of Umar ibn al-Khattab, he instituted the practice of gathering people in the mosque to pray Taraweeh in congregation under one imam. This practice became a consensus and is now widely accepted as a tradition during Ramadan.

Example: The Ijma among the companions and scholars after the time of Umar, accepting Taraweeh in congregation as a legitimate form of worship in Ramadan.

3. Prohibition of Mut'ah (Temporary Marriage)

Mut'ah (temporary marriage) was initially allowed in the early days of Islam. However, later on, Prophet Muhammad prohibited it. After the death of the Prophet, some people continued to practice it. Under the caliphate of Umar ibn al-Khattab, a consensus was reached among the companions that Mut'ah was prohibited permanently, and this has remained the accepted ruling in the majority of Islamic jurisprudence.

4. Inheritance of Grandchildren

The Qur'an provides detailed rules of inheritance, but it does not explicitly mention the case of grandchildren inheriting from their grandparents if their parent (the child of the deceased) has already died. Scholars reached a consensus that in the absence of the parent, the grandchildren may inherit their deceased parent's share. This ruling is widely accepted and practiced in Islamic inheritance law. The Ijma that allows grandchildren to inherit from their grandparents in specific circumstances, even though this is not explicitly mentioned in the Qur'an.

5. Use of Loudspeakers for Adhan (Call to Prayer)

The Qur'an and Sunnah provide the method for calling people to prayer through the Adhan, but they do not mention modern technological advancements like loudspeakers. When loudspeakers became available, scholars reached a consensus that using them for the Adhan was permissible, as it serves the

purpose of calling people to prayer more effectively.: The consensus among modern scholars to allow the use of loudspeakers to broadcast the Adhan.

6. Prohibition of Smoking

Smoking did not exist during the time of the Prophet, so it is not directly mentioned in the Qur'an or Sunnah. Over time, as the harmful effects of smoking on health became evident, scholars reached a consensus that smoking is prohibited (haram) based on the general Islamic principles of preventing harm and preserving health. The Ijma among contemporary scholars declaring smoking as haram due to its harmful effects, in line with the Islamic principle of avoiding self-harm.

7. Legal Status of Artificial Insemination

With advances in medical technology, issues like artificial insemination (IVF) arose. Scholars discussed whether it is permissible for a married couple to use artificial insemination to conceive a child. The consensus was that artificial insemination is permissible as long as it involves only the husband and wife and no third party (such as sperm donation) is involved. The consensus of modern scholars that artificial insemination is allowed within the confines of marriage, but third-party involvement (e.g., donor sperm) is prohibited.

These examples show how Ijma has played a vital role in addressing issues that were not explicitly mentioned in the Qur'an and Sunnah, allowing Islamic law to adapt to changing circumstances while remaining true to its core principles.

4. Qiyas (Analogical reasoning)

Qiyas involves using analogies to apply principles found in the Qur'an and Sunnah to new situations. If there is no direct ruling on a contemporary issue, scholars use similar known rulings to derive a solution.

Exampmples of Qiyas in Islamic law:

1. Prohibition of Drugs Based on Alcohol

Original Ruling: The Qur'an explicitly prohibits alcohol (khamr) because it intoxicates and clouds judgment (Surah Al-Ma'idah 5:90).

Qiyas Application: Based on the prohibition of alcohol, scholars used Qiyas to prohibit other intoxicating substances, such as drugs (e.g., heroin, cocaine, marijuana), because they have the same intoxicating effect and harm the mind.

Example: Since the reason ('illah) for alcohol being haram is intoxication, any substance that similarly intoxicates and impairs judgment is also deemed haram.

2. Prohibition of Smoking

Original Ruling: The Qur'an encourages Muslims to avoid self-harm and anything that causes destruction (Surah Al-Baqarah 2:195).

Qiyas Application: Scholars extended this principle to smoking, as modern medical knowledge has proven that smoking is harmful to health. Using Qiyas, smoking is prohibited because it causes harm to the body, just as alcohol and other harmful substances do.

Example: The reasoning ('illah) is the harm caused to the body, so anything like smoking that results in bodily harm is prohibited.

3. Use of Credit Cards and Interest

Original Ruling: The Qur'an explicitly forbids riba (interest/usury) because it is exploitative (Surah Al-Baqarah 2:275).

Qiyas Application: Modern scholars have extended this prohibition to conventional interest-based financial transactions, such as taking loans with interest or using credit cards that involve interest payments. The reasoning is that both riba and modern interest-based transactions exploit borrowers and lead to financial injustice.

Example: Interest-based transactions are prohibited because they share the same exploitative nature as riba.

4. Use of Modern Financial Products (e.g., Insurance)

Original Ruling: In Islam, transactions involving excessive uncertainty (gharar) are prohibited because they can lead to injustice and exploitation.

Qiyas Application: Scholars applied the prohibition of gharar to certain modern financial products, such as insurance policies, that involve excessive uncertainty. However, some forms of Islamic-compliant insurance (takaful) have been developed, where the risks are shared mutually rather than one party being exploited.

Example: The reasoning ('illah) of the prohibition is the excessive uncertainty in transactions, so insurance contracts with similar uncertainty are also considered problematic unless structured in a Sharia-compliant way.

5. Ruling on Organ Donation

Original Ruling: The Qur'an emphasizes the sanctity of human life and the duty to save lives (Surah Al-Ma'idah 5:32).

Qiyas Application: Organ donation is not explicitly mentioned in the Qur'an or Sunnah. Scholars used Qiyas to extend the principle of saving lives to organ donation, concluding that it is permissible if it can save a life, provided it does not harm the donor.

Example: The 'illah here is the preservation of life, so organ donation is permissible when it aligns with this principle.

6. Prohibition of E-Cigarettes

Original Ruling: Smoking traditional tobacco cigarettes is prohibited due to the harm it causes to health, as determined through Qiyas based on the general Islamic principle of avoiding harm.

Qiyas Application: Scholars have extended the prohibition of smoking to e-cigarettes and vaping because they similarly harm the body, though they use a different method of nicotine delivery. The reasoning ('illah) is the harm caused by inhaling harmful substances, so e-cigarettes and vaping, which also cause harm, are prohibited.

7. Using Perfumes Containing Alcohol

Original Ruling: Alcohol consumption is explicitly prohibited in the Qur'an due to its intoxicating effects (Surah Al-Ma'idah 5:90).

Qiyas Application: Scholars used Qiyas to address the issue of using perfumes or cosmetics containing alcohol. They ruled that alcohol in consumable forms is prohibited, but the use of alcohol in non-consumable products like perfumes is permissible, as it does not intoxicate or affect the mind.

Since the 'illah for alcohol prohibition is intoxication, and perfumes do not cause intoxication, the use of alcohol-based perfumes is allowed.

8. Using Fertility Treatments (IVF)

The Qur'an and Sunnah emphasize the importance of preserving family lineage and the sanctity of marriage. Artificial insemination between a husband and wife is not explicitly mentioned in the Qur'an.

Qiyas Application: Scholars used Qiyas to permit certain fertility treatments (like IVF) between a husband and wife, as long as no third party (e.g., donor eggs or sperm) is involved, preserving the lineage and the sanctity of marriage.

The reasoning ('illah) is maintaining lineage, so fertility treatments that adhere to this principle are allowed.

9. Prohibition of Modern Financial Speculation (e.g., Stock Market Speculation)

Original Ruling: The Qur'an and Sunnah prohibit gambling (Surah Al-Ma'idah 5:90) and transactions involving excessive uncertainty (gharar).

Qiyas Application: Scholars extended this prohibition to modern financial speculation, such as speculative trading in the stock market, which involves high risk and uncertainty, similar to gambling.

The 'illah is the excessive risk and uncertainty, so speculative trading, which shares these characteristics, is also considered prohibited.

10. Digital Currency (Cryptocurrency)

Original Ruling: The use of currency in trade and commerce is permitted in Islam, but certain practices like riba (interest) and gharar (uncertainty) are prohibited.

Qiyas Application: Scholars use Qiyas to assess whether digital currencies like Bitcoin are permissible. Some argue that digital currencies are like conventional money and can be used in transactions, provided they do not involve uncertainty (gharar) or exploitative practices like interest. Others argue that the volatility and uncertainty in the value of cryptocurrencies make them problematic.

Example: The reasoning ('illah) of stability and clarity in transactions leads to differing views on cryptocurrency, but consensus has not yet been fully reached

In summary, Qiyas allows scholars to extend the rulings of the Qur'an and Sunnah to new and evolving issues by finding analogies between old and new situations based on shared reasoning. This ensures that Islamic law remains relevant and adaptable to modern challenges.